

### **Analysis**

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Defendant’s Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, after arbitration or to represent herself.

### **Ruling**

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 4, 2025. The withdrawal is effective immediately.
3. Defendant’s Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for November 24, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that she is ordered to appear.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

**14. 9:00 AM CASE NUMBER: C25-00629**  
**CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: WESTERN DENTAL SERVICES, INC.**

#### **\*TENTATIVE RULING:\***

Before the Court is Defendant Western Dental Services, Inc. (“Defendant” or “Western Dental”)’s demurrer. The Demurrer relates to Plaintiff Thelma Ellenberger (“Plaintiff” or “Ellenberger”)’s complaint. Plaintiff is in *pro per*.

Defendant demurs to the Complaint on the grounds that Plaintiff’s medical malpractice claim is barred by the statute of limitations in Code of Civil Procedure section 430.10(e).

The Court notes that there is no proof of service accompanying the Plaintiff's opposition and Defendant avers on reply that they were not served in accordance with Code of Civil Procedure section 1005(b). The Court notes that "the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85.) While the Court is aware that Plaintiff is proceeding without an attorney in her lawsuit, she is once more cautioned that she is held to "the same 'restrictive procedural rules as an attorney'." (*Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121.)

For the following reasons, the Demurrer is **sustained**, with leave to amend.

#### Brief Factual Allegations

Plaintiff filed a form complaint on March 7, 2025 against Delta Dental and Western Dental. While the form complaint contains pages for motor vehicle, general negligence, intentional tort, premises liability, and products liability, the gravamen of the complaint is a medical malpractice claim against defendants related to a dental implant placed on December 27, 2023. She alleges that "[t]he implant was found to be crooked, the position of the implant is in a[n] angle." (Complaint—General Negligence.) She further alleges that the temporary front tooth she has causes her pain and discomfort.

#### Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

#### Analysis

Defendant argues that Plaintiff's complaint is barred by the statute of limitations in Code of Civil Procedure 340.5 of three years from injury or one year from discovery, whichever occurs first.

"In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person. Actions by a minor shall be commenced within three years from the date of the alleged wrongful act .... Such time limitation shall be tolled for minors for any period during which parent or guardian and defendant's insurer or health care provider have committed fraud or collusion in the failure to bring an action on behalf of the injured minor for professional negligence." (Code Civ. Proc., § 340.5.)

“‘[A] demurrer on the ground of the bar of the statute of limitations does not lie where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred.’” (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 313 [quoting *Baright v. Willis* (1984) 151 Cal.App.3d 303, 311] [citations omitted] [internal quotation marks omitted].)

“[S]tatutes of limitation do not begin to run until a cause of action accrues.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) “[A] cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’” (*Ibid.* [quoting *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397].). “An exception is the discovery rule, which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Norgart, supra*, 21 Cal.4th at p. 389.) “Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.)

“In order to raise the issue of belated discovery, the plaintiff must state when the discovery was made, the circumstances behind the discovery, and plead facts showing that the failure to discover was reasonable, justifiable and not the result of a failure to investigate or act. Once belated discovery is pleaded, the issue of whether plaintiff exercised reasonable diligence in discovering the negligent cause of the injury is a question of fact.” (*Bastian v. County of San Luis Obispo* (1988) 199 Cal.App.3d 520, 527 [citations omitted].) “Once properly pleaded, belated discovery is a question of fact.” (*Ibid.*) A demurrer may be sustained only where “the trial court could determine as a matter of law that failure to discover was due to failure to investigate or to act without diligence.” (*Ibid.*)

Based on the date the implant was placed (December 27, 2023), Defendant argues that Plaintiff’s complaint had to have been filed within one year of that date. However, it is not clear to the Court that Plaintiff knew or should have known of her injury on that date. She alleges that the implant was “found to be crooked” and that “the position of the implant is in a[n] angle.” The face of the complaint is somewhat ambiguous as to when Plaintiff discovered these facts. The implication is that Plaintiff discovered the implant was crooked following the implant procedure. The date of that discovery is not clear. The Court cannot conclude that the Plaintiff’s claim is necessarily barred as a matter of law. That said, the Complaint fails to adequately allege delayed discovery. As a consequence, the Court sustains the Defendant’s Demurrer with leave to amend additional facts which would support a finding of belated discovery.

Defendant is ordered to prepare and e-file a proposed order that conforms to the tentative ruling within five days from the date of the hearing. Plaintiff shall file an amended complaint no later than ten (10) days from the Notice of Entry of Order.

**15. 9:00 AM CASE NUMBER: C25-00629**  
**CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL**  
**\*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT**  
**FILED BY: WESTERN DENTAL SERVICES, INC.**  
**\*TENTATIVE RULING:\***

Before the Court is Defendant Western Dental Services, Inc. (“Defendant” or “Western Dental”)’s motion to strike. The motion relates to Plaintiff Thelma Ellenberger (“Plaintiff” or “Ellenberger”)’s